

M/s Vijay Iron Foundry v. State of U.P. & Ors.

High Court of Judicature at Allahabad · Division Bench · 7 April 2023 · Writ - C No. 38261 of 2013 · **Writ dismissed for want of prosecution.**

HEADNOTE

Writ challenging additional security under para 4.20 of the U.P. Electricity Supply Code, 2005, earlier connected with similar pending matters and stayed, dismissed for want of prosecution when none appeared on the revised call.

FACTUAL SUMMARY

M/s Vijay Iron Foundry, an industrial consumer, challenged in 2013 a demand of additional security under para 4.20 of the U.P. Electricity Supply Code, 2005. The petition was connected with W.P. No. 30582 of 2009 (M/s Vehina Steels) and similar pending challenges. Following the interim already granted there, the Court restrained the respondents from demanding additional security until further orders, without prejudice. After a decade the matter was adjourned once on the petitioner's request and then taken up on 7 April 2023.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.20

additional security

HOLDING

A writ challenging the licensee's demand of additional security under para 4.20 of the U.P. Electricity Supply Code, 2005, which had been connected with similar pending matters and protected by an interim restraint on such demand without prejudice to the parties, was dismissed for want of prosecution when none appeared for the petitioner even on the revised call. ¶ 17.7.2013, 7.4.2023

PRINCIPLE TAGS

additional-security Writ challenging additional security under para 4.20 of the U.P. Electricity Supply Code, 2005, earlier connected with similar pending matters and stayed, dismissed for want of prosecution when none appeared on the revised call. ¶ 17.7.2013, 7.4.2023

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER PARA 4.20 OF THE U.P. ELECTRICITY SUPPLY CODE, 2005 VALIDLY AUTHORISED THE DEMAND OF ADDITIONAL SECURITY

Petition connected with similar challenges; merits not reached; dismissed for want of prosecution. ¶ 17.7.2013, 7.4.2023